

SALE DEED

Document No.: 5847/2005

Date of Execution: 22nd day of March, 2005

Place of Execution: New Delhi

THIS SALE DEED is made and executed on this the 22nd day of March, Two Thousand and Five (22-03-2005) at New Delhi.

BETWEEN

MR. RAJESH KUMAR SHARMA, Son of Late Shri Brij Mohan Sharma, aged about 48 years, Indian National, currently residing at Flat No. 8, Fourth Floor, Plot No. 1A, Hauz Khas Enclave, New Delhi - 110016, PAN: ABRPS4523K (hereinafter referred to as "the Vendor" or "the Seller" or "the Transferor", which expression shall, unless excluded by or repugnant to the context, include his heirs, executors, administrators, legal representatives, successors and assigns),

OF THE FIRST PART

AND

MR. VIKRAM SINGH CHAUHAN, Son of Shri Harbhajan Singh Chauhan, aged about 35 years, Indian National, residing at C-12, Vasant Vihar, New Delhi - 110057, PAN: BKCPC8834M, Aadhaar No.: 7823-XXXX-4561 (hereinafter referred to as "the Vendee" or "the Purchaser" or "the Transferee", which expression shall, unless excluded by or repugnant to the context, include his heirs, executors, administrators, legal representatives, successors and assigns),

OF THE SECOND PART

The Vendor and the Vendee are hereinafter collectively referred to as "the Parties" and individually as "a Party."

WHEREAS

A. WHEREAS the Delhi Development Authority (DDA), being the owner and developer of the residential apartments constructed under the Hauz Khas Residential Scheme, 1988, on Plot No. 1A, Hauz Khas Enclave, New Delhi - 110016, allotted Flat No. 8, Fourth Floor, to the Vendor, Mr. Rajesh Kumar Sharma, vide Demand-cum-Allotment Letter No. F.7(42)/88/HK/DDA dated 12th March, 1990, on a leasehold basis for a period of 99 years, perpetually renewable, under the provisions of the Delhi Development Act, 1957.

B. AND WHEREAS the Vendor duly paid the entire cost of the said residential flat amounting to Rs. 6,85,000/- (Rupees Six Lakhs Eighty-Five Thousand Only) to the DDA and a formal Conveyance Deed was executed and registered in favour of the Vendor by the Delhi Development Authority, bearing Document No. 123 for the year 1995, registered at the Office of the Sub-Registrar, SRO V-A (Hauz Khas), New Delhi, on the 18th day of January, 1995, in Book No. I, Volume No. 1247, Pages 42 to 58.

C. AND WHEREAS the Vendor has been in continuous, uninterrupted, and peaceful possession and enjoyment of the said residential flat since the date of the DDA allotment in 1990 and has been residing therein with his family, and the said flat stands in the name of the Vendor in the records of the DDA, the New Delhi Municipal Council (NDMC), and all other relevant authorities.

D. AND WHEREAS the Vendor has obtained the requisite No Objection Certificate (NOC) from the Delhi Development Authority vide Letter No. F.7(42)/88/HK/DDA/NOC/2004-1187 dated 15th December, 2004, permitting the transfer and sale of the said residential flat, the restriction period of five years from the date of allotment having long expired.

E. AND WHEREAS the Vendor has represented and assured the Vendee that the said flat on the fourth floor is free from all encumbrances, charges, liens, mortgages, prior sales, gifts, attachments, acquisitions, trusts, disputes, litigation, claims, and demands of whatsoever nature, and the Vendor has clear, marketable, and undisputed title to the said flat.

F. AND WHEREAS the Vendee, having satisfied himself as to the clear title of the Vendor and the physical condition and legal status of the said residential flat, has agreed to purchase the same from the Vendor for a total sale consideration of Rs. 42,50,000/- (Rupees Forty-Two Lakhs Fifty Thousand Only), and the Vendor has agreed to sell, convey, and transfer the same to the Vendee on the terms and conditions hereinafter appearing.

NOW THIS SALE DEED WITNESSETH AS FOLLOWS:

1. That in consideration of the sum of Rs. 42,50,000/- (Rupees Forty-Two Lakhs Fifty Thousand Only) paid by the Vendee to the Vendor, the receipt and sufficiency whereof the Vendor doth hereby acknowledge, the payment having been made as follows:

(a) Rs. 5,00,000/- (Rupees Five Lakhs Only) paid as earnest money / advance on 10th January 2005, vide cheque No. 435218 dated 10-01-2005, drawn on ICICI Bank, Vasant Vihar Branch, New Delhi;

(b) Rs. 37,50,000/- (Rupees Thirty-Seven Lakhs Fifty Thousand Only) paid at the time of execution and registration of this Sale Deed, vide Demand Draft No. 782341 dated 20-03-2005, drawn on HDFC Bank, Hauz Khas Branch, New Delhi, in favour of Mr. Rajesh Kumar Sharma;

the Vendor doth hereby sell, convey, transfer, and assign unto the Vendee ALL THAT the residential flat more particularly described in the Schedule of Property hereunder written, together with all rights, title, interest, easements, privileges, and appurtenances whatsoever belonging to or in any way appertaining to the said flat, TO HAVE AND TO HOLD the same unto the Vendee absolutely and forever, subject to the terms and conditions of the original DDA allotment and the leasehold tenure.

2. VENDOR'S REPRESENTATIONS, WARRANTIES AND COVENANTS:

The Vendor hereby represents, warrants, and covenants with the Vendee as follows:

(a) That the Vendor is the sole and absolute owner of the said residential flat and has full right, power, and authority to sell, convey, and transfer the same to the Vendee.

(b) That the said flat is free from all encumbrances, charges, liens, mortgages, prior sales, gifts, exchange, partition, attachments, acquisitions, trusts, court orders, decrees, injunctions, and claims of whatsoever nature, and no person other than the Vendor has any right, title, interest, or claim in the said flat.

(c) That the Vendor has not entered into any agreement, arrangement, or understanding with any other person for the sale, transfer, mortgage, or disposal of the said flat, and this Sale Deed constitutes the first and only transfer of the flat from the Vendor.

(d) That all dues, taxes, charges, levies, and assessments payable in respect of the said flat,

including but not limited to property tax, house tax, water and electricity charges, DDA ground rent, maintenance charges, and all other statutory and municipal levies, have been duly paid by the Vendor up to the date of this Sale Deed, and no arrears are outstanding.

(e) That the Vendor has not done or suffered anything whereby the said flat or any part thereof has been or may be encumbered, charged, or affected in any manner whatsoever.

(f) That the Vendor shall, at his own cost, execute and register all such further deeds, documents, and writings as may be required by the Vendee for the purpose of more fully and effectively transferring, assuring, and confirming the said flat unto the Vendee.

(g) That the Vendor has delivered and handed over all original title documents, records, and papers pertaining to the said flat to the Vendee, including but not limited to the original DDA allotment letter, DDA Conveyance Deed, DDA NOC for transfer, payment receipts, and possession letter.

(h) That the Vendor shall indemnify, defend, and hold harmless the Vendee from and against all actions, claims, demands, proceedings, costs, charges, expenses, losses, and damages which the Vendee may suffer or incur by reason of any defect in the title of the Vendor or by reason of any encumbrance or claim affecting the said flat.

3. DELIVERY OF POSSESSION:

The Vendor hereby confirms that he has delivered actual, physical, vacant, and peaceful possession of the said residential flat on the fourth floor to the Vendee on the date of execution of this Sale Deed, i.e., 22nd March, 2005, along with all fittings, fixtures, keys, and appurtenances, and the Vendee confirms having received the same.

4. INDEMNITY CLAUSE:

The Vendor hereby covenants and agrees to indemnify and keep indemnified the Vendee, his heirs, executors, administrators, and assigns, against all claims, demands, suits, proceedings, costs, charges, and expenses arising out of or in connection with any defect in the title of the Vendor or any breach of the representations, warranties, and covenants contained herein. This indemnity shall survive the execution and registration of this Sale Deed.

5. MISCELLANEOUS:

(a) This Sale Deed shall be governed by and construed in accordance with the provisions of the Transfer of Property Act, 1882, the Registration Act, 1908, the Indian Stamp Act, 1899, and all other applicable laws of India.

(b) Any dispute arising out of or in connection with this Sale Deed shall be subject to the exclusive jurisdiction of the competent courts of New Delhi.

(c) The Vendee shall get the mutation of the said flat recorded in his name in the records of the DDA, NDMC, and all other relevant authorities at his own cost and expense.

SCHEDULE OF PROPERTY (Description of the Residential Flat)

ALL THAT the residential flat being Flat No. 8, situated on the Fourth Floor, in the residential apartment building constructed on Plot No. 1A, Hauz Khas Enclave, within the revenue estate of Village Hauz Khas, in the area of New Delhi Municipal Council (NDMC), in the National Capital Territory of Delhi, New Delhi - 110016, admeasuring 1200 sq.ft. (One Thousand Two Hundred Square Feet) of super built-up area and 950 sq.ft. (Nine Hundred and Fifty Square Feet) of carpet area, and bounded as follows:

On the NORTH by : Common passage / corridor
On the SOUTH by : Flat No. 9, belonging to another allottee
On the EAST by : Open space / balcony overlooking the park
On the WEST by : Common staircase and lift shaft

Together with the undivided proportionate share in the common areas and facilities of the building including but not limited to the staircase, lift, lobby, parking area, water supply installation, and drainage system, and subject to the leasehold tenure of 99 years from the date of original DDA allotment.

IN WITNESS WHEREOF the Parties hereto have set their respective hands and seals on this Sale Deed on the day, month, and year first above written.

VENDOR / SELLER / TRANSFEROR:

Signature: _____
Name: Mr. Rajesh Kumar Sharma
S/o Late Shri Brij Mohan Sharma
PAN: ABRPS4523K
Date: 22-03-2005

VENDEE / PURCHASER / TRANSFEREE:

Signature: _____
Name: Mr. Vikram Singh Chauhan
S/o Shri Harbhajan Singh Chauhan
PAN: BKCPC8834M
Aadhaar: 7823-XXXX-4561
Date: 22-03-2005

WITNESSES:

1. Signature: _____
Name: Shri Deepak Malhotra
S/o Shri R.K. Malhotra
Address: A-3/42, Safdarjung Development Area, New Delhi - 110016
2. Signature: _____
Name: Smt. Priya Nair
W/o Shri Suresh Nair
Address: 18, Aurobindo Marg, Hauz Khas, New Delhi - 110016

REGISTRATION ENDORSEMENT

Registered at the Office of the Sub-Registrar, SRO V-A (Hauz Khas), New Delhi, in Book No. I, Volume No. 3842, Pages 112 to 136, as Document No. 5847 for the year 2005, on this the 25th day of March, 2005.

Presented for registration by Mr. Rajesh Kumar Sharma, Vendor / Executant, identified by Shri Deepak Malhotra, Identifying Witness, and by Mr. Vikram Singh Chauhan, Vendee / Claimant.

Stamp Duty paid: Rs. 2,55,000/- (Rupees Two Lakhs Fifty-Five Thousand Only) vide non-judicial stamp papers bearing Serial Nos. AA-0421876 to AA-0421882, purchased from the authorized stamp vendor.

Registration Fee paid: Rs. 42,500/- (Rupees Forty-Two Thousand Five Hundred Only) vide Receipt No. SR/HK/2005/5847.

Market Value assessed by the Sub-Registrar: Rs. 42,50,000/- (Rupees Forty-Two Lakhs Fifty Thousand Only), being in accordance with the circle rates notified by the Government of NCT of Delhi.

Sd/-
Sub-Registrar, SRO V-A
(Hauz Khas), New Delhi
Date: 25-03-2005